Shan Mohammad vs State Of U.P. And Another on 1 May, 2024

Author: Rajeev Misra

Bench: Rajeev Misra

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HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2024:AHC:77646

Court No. - 77

Case :- CRIMINAL REVISION No. - 2358 of 2023

Revisionist :- Shan Mohammad

Opposite Party :- State of U.P. and Another

Counsel for Revisionist :- Awadh Bihari Pandey

Counsel for Opposite Party :- G.A.

Hon'ble Rajeev Misra,J.
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1. Heard Mr. Awadh Bihari Pandey, the learned counsel for revisionist, the learned A.G.A. for State-opposite party-2 and the learned counsel representing opposite party-2.

2. Perused the record.

3. This criminal revision is directed against the order dated 30.01.2023 passed by Additional Principal Judge, Family Court, Court No.3, Kanpur Nagar in Case No. 634 of 2015 (Smt. Hafizan Vs. Shan Mohammad) under Section 125 Cr.P.C., Police Station Darshanpurwa, District-Kanpur Nagar whereby court below has allowed the aforementioned maintenance case and consequently directed the revisionist to pay monthly maintenance to opposite party-2 @ 1000/- from the date of application upto the date of order and thereafter @ Rs.3000/- respectively.

4. Learned counsel for revisionist in challenge to the order impugned has raised a solitary submission by contending that since revisionist granted divorce (Talak) to opposite party-2 therefore by reason of above, opposite party-2 could not press her right for monthly maintenance from revisionist under Section 125 Cr.P.C. On the above premise, he therefore contends that the order impugned in present criminal revision is not only illegal but also in excess of jurisdiction. Consequently, same is liable to be set aside by this Court.

5. Per contra, the learned A.G.A. for State and the learned counsel representing opposite party-2 have vehemently opposed this criminal revision. They contend that by virtue of provisions contained in explanation (b) to Section 125 Cr.P.C., a divorce woman is also entitled to monthly maintenance from her husband. Reference was also made to following judgements of the Supreme Court:

> I. Bai Tahira Vs. Ali Hussain Fidaalli Chothia and another (1979) 2 SCC 316 ii. Mohd. Ahmed Khan Vs. Shah Bano Begum and others (1985) 2 SCC 556 III. Shabana Bano Vs. Imran Khan (2010) 1 SCC 666 IV. Shamima Farooqui Vs. Shahid Khan (2015) 5 SCC 705.
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> wherein the Apex Court has held that a divorced Muslim woman is also entitled to claim monthly maintenance from her husband. Since nothing has been brought on record by revisionist to dislodge the same therefore order impugned passed by court below cannot be said to be illegal or in excess of jurisdiction. Consequently, present criminal revision is liable to be dismissed by this Court.

6. When confronted with above, the learned counsel for revisionist could not overcome the same.

7. Having heard the learned counsel for revisionist, the learned A.G.A. for State, the learned counsel representing opposite partyi-2 and upon perusal of record this Court finds that the objections raised by the learned A.G.A. and the learned counsel representing opposite party-2 in opposition to present criminal revision could not be dislodged by the learned counsel for revisionist. Furthermore, in view of law laid down by Apex Court as noted herein above and also explanation of the provision (b) to Section 125 Cr.P.C., order impugned cannot be said to be illegal or in excess of jurisdiction. Apart from above, upon perusal of the order impugned, this Court finds that court below while passing the order impugned has neither committed a jurisdictional error nor has it exercised it's jurisdiction with material irregularity so as to vitiate the impugned order and warrant interference by this Court.

8. In view of above, this Court does not find any good ground to entertain this criminal revision.

9. As a result, present criminal revision fails and is liable to be dismissed.

10. It is accordingly dismissed.

Order Date :- 1.5.2024 YK